

23PR00491 Estate of George Stephen Cochran

County: santa-barbara

Division: Decedent's Estate

Department: 4 SM-Cook

Hearing date: 2026-09-28

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of George Stephen Cochran

Case Number

23PR00491

Case Type

Decedent's Estate

Hearing Date / Time

Mon, 09/28/2026 - 08:30

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

Taking into account the "Response" filed on April 20, 2026, the Declaration filed on April 24, 2026, and two "Statements" filed on September 15, 2026, the following defects persist and must be remedied before the petition may be granted:

Amendment to the Petition re: Actions under IAEA. Petitioner alleges at paragraph 17 that Petitioner did not take any action under the IAEA without prior court approval, but then admits at paragraph 29 that the only item of property in the Inventory and Appraisal (a home) was sold, and there is no record that Petitioner sought court confirmation of that sale. An amendment to the petition giving the requisite information was required before the last hearing. No amendment is on file.

Amendment to the Petition re: proposed distribution. The proposed distribution differs from the distribution ordered by Decedent's Last Will and Testament. Specifically, there is no request to distribute the residue of Decedent's estate to Michelle Lynn Massey, nor any indication that the music rights indicated in the Last Will and Testament of Decedent have lapsed or adeemed.

The Response and Declaration show that the personal representative identified the music rights as a legitimate property and is in the process of marshaling that property. The proposed small estate affidavit procedure may be sufficient for collecting that property in Ms. Massey's estate, but does nothing to remedy the proposed distribution from this estate, which it must flow from first.

Supplement re: Preliminary Distribution. Petitioner alleges at paragraph 28 that preliminary distribution of \$55,000 was made. The Court did not approve this distribution, nor was any request made to distribute.

Probate Code section 10520 grants limited authority to personal representatives with IAEA powers to make preliminary distributions without first seeking the approval of the court. IF 1) the time for filing claims has expired, (i.e., 4 months after letters are issued), and 2) it appears that the distribution may be made without loss to creditors or injury to the estate or any interested person, then 3) after giving notice of proposed action (Prob C §10510) a personal representative may distribute the following:

(a) Income received during administration to the persons entitled under Chapter 8 (commencing with Section 12000) of Part 10.

(b) Household furniture and furnishings, motor vehicles, clothing, jewelry, and other tangible articles of a personal nature to the persons entitled to the property under the decedent's will, not to exceed an aggregate fair market value to all persons of fifty thousand dollars (\$50,000) computed cumulatively through the date of distribution. Fair market value shall be determined on the basis of the inventory and appraisal.

(c) Cash to general pecuniary devisees entitled to it under the decedent's will, not to exceed ten thousand dollars (\$10,000) to any one person.

(Prob. Code, §10520.)

All other preliminary distributions require prior court authorization via petition and a noticed hearing.

Petitioner must submit supplement explaining what was distributed, and why that property was not listed in the Final Inventory and Appraisal. There is still no supplement on file explaining this issue.

Due to staffing limitations, processing times may be delayed. To assist in processing, attorneys and parties should include the next court date in the "Filing Description" field provided by the electronic service provider. That field is also used for further descriptions of the document being e-filed, so be sure to put the calendar date FIRST in the field – BEFORE any further description of the document being e-filed (e.g.: 06/28/16 For XYZ).

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

312-C East Cook Street

Santa Maria, CA 93454

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